

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003

Cory Lea Shepherd

Appellant

v

Workers' Compensation Regulator

Respondent

Matter No. WC/2024/227

APPEAL AGAINST DECISION OF RESPONDENT PURSUANT TO SECTION 549

APPELLANT'S ELECTION UNDER DIRECTION 5, AND DIRECTIONS REQUESTED

FURTHER TO direction 5 of the Further Directions Order (3) dated 19 August 2026, the Appellant elects to proceed to a second conference under section 552A, and asks that the Commission direct:

1. **That the appeal be listed for a second conference under section 552A of the Workers' Compensation and Rehabilitation Act 2003**, on a date fixed by the Commission, at which the directions requested at 2 and 3 below may be dealt with.
2. **That the Appellant have leave to file in the Industrial Registry and serve on the Respondent the Second Amended Statement of Facts and Contentions (Form 9A) enclosed**, under section 451(2) of the Industrial Relations Act 2016. The Second Amended Form 9A states that the Appellant bears the onus of proof; confines each stressor to the facts admitted by the Respondent on 8 September 2026 and the documents that record them; and states the contentions and the questions for determination on that footing, so that the appeal proceeds on the admitted facts, the admitted documents and the factual basis as it has crystallised. It adds no new allegation. The Appellant does not require to change his list of witnesses filed, or his outlines of evidence served on the Respondent, on 9 September 2026 under directions 1 and 2, and they stand as filed and served on that date.
3. **That the Respondent state, by 4.00 pm on a date fixed by the Commission, whether it disputes the authenticity of each of the ten documents at Annexure A to the Appellant's notice to admit documents served 28 August 2026 that remain outstanding, and on what ground;** being Tabs 1, 5, 17, 18, 19, 21, 22, 23 and 31, of which the Respondent said on 23 September 2026 that it had requested copies from Metro South Hospital and Health Service, and Tab 24, which its email of that date did not address. The facts recorded in each, other than the register at Tab 31 (facts 228 to 231), were admitted on 8 September 2026. The Appellant asks that any document not disputed by that date be received at the hearing subject to proof.
4. **That the Respondent have leave to file and serve an amended statement of facts and contentions, and any amended list of witnesses and outlines of evidence**, if it wishes, within 14 days after the filing of the Second Amended Form 9A.
5. **Such further directions as the Commission considers appropriate.**

Enclosed with this page: the Appellant's letter of explanation, with the schedule of the documents relied on and their status (four pages in all); and the Second Amended Statement of Facts and Contentions (Form 9A) (25 pages). The notices to admit, the Respondent's responses and the documents themselves are available to the Commission on request.

Dated 30 September 2026

Cory Lea Shepherd

Appellant (self-represented)